

The Rehabilitation Council Of India (Amendment) Act, 2000

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[Act 38 of 2000](#)

[Published on 1 January 2000](#)

[Commenced on 1 January 2000](#)

[\[This is the version of this document from 1 January 2000.\]](#)

[\[Note: The original publication document is not available and this content could not be verified.\]](#)

[An Act to amend the Rehabilitation Council of India Act, 1992.](#)

[BE it enacted by Parliament in the Fifty- first Year of the Republic of India as follows:-](#)

[1.](#)

[Short title.-](#)

[This Act may be called the Rehabilitation Council of India \(Amendment\) Act, 2000 .](#)

[2.](#)

[Amendment of long title.-](#)

[In the Rehabilitation Council of India Act, 1992 \(](#)

[34 of 1992](#)

[\) \(hereinafter referred to as the principal Act\), in the long title for the words" the training of rehabilitation professionals and", the words" and monitoring the t aining of rehabilitation professionals and personnel, promoting research in](#)

rehabilitation and special education," shall be substituted.

3.

Amendment of section 2.-

In section 2 of the principal Act, -(1) in sub- section (1),-

(i)

for clause (c), the following clause shall be substituted, namely:-

(c)

" handicapped" means a person suffering from any disability referred to in clause (i) of section 2 of the Persons With Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995 (

1 of 1996

);

(ii)

clauses (d) and (e) shall be omitted;

(iii)

after clause (m), the following clause shall be inserted, namely:-

(ma)

" rehabilitation" refers to a process aimed at enabling persons with disabilities to reach and maintain their optimal physical, sensory, intellectual, psychiatric or social functional levels.

(iv)

clause (o) shall be omitted;

(2)

after sub- section (1), the following sub- section shall be inserted, namely:-

(1A)

Words and expressions used and not defined in this Act but defined in the Persons With Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995 (

1 of 1996

) shall have the meanings respectively assigned to them in that Act.

4.

Amendment of section 3.

In section 3 of the principal Act, in sub- section (3), for clauses (a) and (b), the following clauses shall be substituted, namely:-

(a)

a Chairperson, from amongst the persons having experience in administration with professional qualification in the field of rehabilitation, disabilities, and special education, to be appointed by the Central Government;

(b)

such number of members not exceeding seven, as may be nominated by the Central Government, to represent the Ministries of the Central Government dealing with matters relating to persons with disabilities.

5.

Amendment of section 13.-

In section 13 of the principal Act, after sub- section (2), the following sub- section shall be inserted, namely:-

(2A)

Notwithstanding anything contained in sub- section (2), any person being a doctor or a paramedic in the field of physical medicine and rehabilitation, orthopaedics, ear, nose or throat (ENT), ophthalmology or psychiatry, employed or working in any hospital or establishment owned or controlled by the Central Government or a State Government or any other body funded by the Central or a State Government and notified by the Central Government, may discharge the functions referred to in clauses (a) to (d) of that sub- section.

6.

Amendment of section 19.-

In section 19 of the principal Act, the following provisos shall be inserted at the end, namely:-

" Provided that the Council shall register vocational instructors and other personnel working in the vocational rehabilitation centres under the Ministry of Labour on recommendation of that Ministry and recognise the vocational

rehabilitation centres as manpower development centres:

Provided further that the Council shall register personnel working in national institutes and apex institutions on disability under the Ministry of Social Justice and Empowerment on recommendation of that Ministry and recognise the national institutes and apex institutions on disability as manpower development centres."

7.

Amendment of section 22.-

In section 22 of the principal Act, in sub-section (2), for the words "period of thirty days", at both the places where they occur, the words "period of sixty days" shall be substituted.

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